

AlphaFold Server Output Terms of Use

BY USING ALPHAFOLD SERVER OUTPUT, YOU AGREE TO THE FOLLOWING TERMS OF USE.

By using structure predictions or related information provided by Google DeepMind’s AlphaFold Server (“Output”), or substantially derived from Output (“Derivatives”), without signing up to AlphaFold Server and agreeing to AlphaFold Server Additional Terms of Service, you agree to be bound by these AlphaFold Server Output Terms of Use between you (or your organization, as applicable) and Google LLC (these “Terms”).

If you are using Output or Derivatives on behalf of an organization, you confirm you are authorized either explicitly or implicitly to agree to, and are agreeing to, these Terms as an employee or otherwise on behalf of your organization.

If you have a Google account and have agreed to AlphaFold Server Additional Terms of Service, your use of Output or Derivatives is governed by those terms. IF YOU HAVEN’T AGREED TO ALPHAFOLD SERVER ADDITIONAL TERMS OF SERVICE AND DON’T AGREE TO THESE TERMS, DON’T USE OUTPUT OR DERIVATIVES OR PERMIT ANY THIRD PARTY TO DO SO ON YOUR BEHALF.

When we speak of “Google”, “we” and “us”, we mean Google LLC and its affiliates.

Use restrictions

AlphaFold Server belongs to us. We make Output available free of charge, for non-commercial use only, in accordance with following use restrictions. You must not use nor allow others to use Output or Derivatives:

1. ON BEHALF OF A COMMERCIAL ORGANIZATION OR IN CONNECTION WITH ANY COMMERCIAL ACTIVITIES, INCLUDING RESEARCH ON BEHALF OF A COMMERCIAL ORGANIZATION or sharing or using Output or Derivatives in a manner that will grant a commercial organization any rights in Output or Derivatives, in each case aside from indirectly via a scientific publication, open source release or to support journalism.
2. IN CONNECTION WITH ANY AUTOMATED SYSTEM that predicts the binding or interaction of the protein with ligands or peptides, including, but not limited to, Glide or AutoDock.
3. TO TRAIN MACHINE LEARNING MODELS OR RELATED TECHNOLOGY FOR BIOMOLECULAR STRUCTURE PREDICTION SIMILAR TO GOOGLE DEEPMIND’S ALPHAFOLD TECHNOLOGY.
4. WITHOUT PROVIDING CONSPICUOUS NOTICE THAT PUBLISHED OR DISTRIBUTED OUTPUT OR DERIVATIVES ARE PROVIDED UNDER AND SUBJECT TO THESE TERMS AND OF ANY MODIFICATIONS YOU MAKE TO OUTPUT.
 1. If you remove these Terms, or any notice of these Terms, from Output or Derivatives, you must ensure further distribution is accompanied by a “Legally Binding Terms of Use” text file that contains the following notice: “This information is subject to AlphaFold Server Output Terms of Use found at alphafoldserver.com/output-terms”.
 2. If you provide additional or different terms and conditions for use, reproduction or distribution of Output or Derivatives, you must include this “Use restrictions” section of these Terms as an enforceable provision and provide clear notice to subsequent users that Output and Derivatives are subject to such use restrictions.
5. TO MISINFORM, MISREPRESENT OR MISLEAD, including:
 1. misrepresenting your relationship with Google - including by using Google’s trademarks, trade names, logos or suggesting endorsement by Google without Google’s permission to do so - nothing in these Terms grants such permission;
 2. misrepresenting the origin of Output or Derivatives;
 3. distributing misleading claims of expertise or capability made particularly in sensitive areas (e.g., health); or
 4. making decisions in domains that affect material or individual rights or well-being (e.g., healthcare).
6. TO PERFORM OR FACILITATE DANGEROUS, ILLEGAL OR MALICIOUS ACTIVITIES, including promoting or facilitating the sale of, or providing instructions for synthesizing or accessing, illegal substances, goods or services.

Output and Derivatives may be provided with ancillary information that belongs to us. You may use such ancillary information as allowed by these Terms. You agree that your right to use and share Output or Derivatives is subject to your compliance with these Terms. If you breach these Terms, Google reserves the right to request that you delete and cease use or sharing of Output or Derivatives in your possession or control. You agree to immediately comply with any such request.

Disclaimers and limitations of liability

Nothing in these Terms restricts any rights that cannot be restricted or limits Google's responsibilities except as allowed by applicable law.

Structure predictions provided by AlphaFold Server are predictions with varying levels of confidence, provided strictly as-is and without representation or warranty of any kind, express or implied, including implied warranties of merchantability, fitness for a particular purpose, title, and non-infringement. You are responsible for the accuracy, reliability, availability, effectiveness, or correct use of information generated by AlphaFold Server or for any impact from ongoing use of such information. If you rely on any such information, you do so solely at your own risk.

AlphaFold Server, Output and Derivatives are for theoretical modeling only. These are not intended, validated, or approved for clinical use. You should not use these for clinical purposes or rely on them for medical or other professional advice. Any content regarding those topics is provided for informational purposes only and is not a substitute for advice from a qualified professional.

In no circumstances will Google be responsible for any indirect, special, incidental, exemplary, consequential, or punitive damages, or lost profits of any kind or any liability, including for its own negligence, relating to these Terms over \$500.

Governing law and disputes

These Terms will be governed by the laws of the State of California without regard to choice of law principles. The state or federal courts of Santa Clara County, California shall have exclusive jurisdiction of any dispute arising out of these Terms.

Given the nature of scientific research, it may take some time for any breach of these Terms to become apparent. To the extent allowed by applicable law, any legal claims relating to these Terms can be initiated until the later of: (a) the cut-off date under applicable law for bringing the legal claim; or (b) two years from the date you or Google (as applicable) became aware, or should reasonably have become aware, of the facts giving rise to that claim. You won't argue limitation, time bar, delay, waiver or the like in an attempt to bar an action filed within that time period, and neither will we.

Miscellaneous

Google may update these Terms (1) to reflect changes in how it does business, (2) for legal, regulatory, or security reasons, or (3) to prevent abuse or harm. The version of these Terms that were effective on the date the relevant Output was generated will apply to your use of that Output or its Derivatives.

If it turns out that a particular provision of these Terms is not valid or enforceable, this will not affect any other provisions.